FREDA REBECCA GOLD MINE LIMITED
versus
DAVISON MURAMBIWA

HIGH COURT OF ZIMBABWE
MAMBARA J
HARARE; 6 and 7 July 2026

Opposed Application

W Musikade, for the applicant
R Masinire, for the respondent

MAMBARA J:

[1] This is an application for the eviction of the respondent from house number 4 Zororo Park, Bindura. The respondent came into occupation of the property by virtue of his employment with the applicant and a lease agreement concluded between the parties. The papers show that the occupation was expressly tied to the subsistence of the contract of employment. The respondent's last contract of employment terminated on 6 April 2023. The lease, by its own terms, endured only until termination of employment. Yet the respondent has remained in occupation.

[2] At the hearing, *Mr W. Musikadi* appeared for the applicant and Mr R. *Masinire* appeared for the respondent. Before the merits were argued, Mr *Musikadi t*ook issue with the respondent's supplementary affidavit. The record shows that a supplementary affidavit was indeed filed on 20 April 2026. No leave to file that further affidavit appears on the record. In motion proceedings, further affidavits are not filed for the asking. The rules are there to secure orderly procedure, not to decorate it. I accordingly upheld the objection and ordered that the supplementary affidavit be expunged from the record.

In *Limine*

[3] The respondent's principal point *in limine* was that there existed material disputes of fact incapable of resolution on the papers, chiefly concerning ownership of the property, the alleged excision of the land from the mining area, and an asserted legitimate expectation to

purchase the house. The law on disputes of fact in application proceedings is settled. In *Supa Plant Investments (Pvt) Ltd* v *Chidavaenzi* 2009 (2) ZLR 132 (H), it was stated that a material dispute arises only where the facts are traversed in such a manner as to leave the court with no ready answer without further evidence. In *Muzanenhamo v Officer in Charge CID Law and Order & Ors* CCZ 3/13, it was emphasized that the mere allegation of a dispute is not enough. These very principles were recently applied in *Freda Rebecca Gold Mine Ltd* v *Chibamu* HH 283-25, where substantially the same defences were rejected.

[4] I am not persuaded that there is any true or material dispute of fact here. The essential facts are common cause. The respondent was an employee of the applicant. He occupied the property under a lease agreement. The lease was tied to employment. The employment was terminated. The respondent nevertheless remained in occupation. What the respondent has done is to dress a spent defence in the garments of "ownership", "state land", and "legitimate expectation", hoping that costume might be mistaken for substance. It cannot. A point *in limine* is not upheld merely because it is emphatically argued. The point is devoid of merit and is dismissed.

[5] *Mr Masinire* was correct in one narrow sense when he submitted that each case must be decided on its own merits. That proposition is too plain to admit of quarrel. But once it is uttered, the court must still ask whether the present matter is materially distinguishable from those already decided. It is not. The path has already been traversed in Freda Rebecca Gold Mine Ltd v Chibamu HH 283-25 and *Freda Rebecca Gold Mine Ltd* v *Mataswa* HH 455-25. Repetition does not create distinction.

Merits

[6] The founding papers establish that the respondent's occupation of the property was "expressly incidental to and dependent upon" his employment with the applicant. The lease agreement provides that the applicant let the property to the respondent "until the termination of the employment contract by either party." The employment contract in turn states that, upon termination of service, the employee would enjoy tenure of only one calendar month after termination, upon which the house had to be vacated. Those provisions are plain and admit of no ambiguity.

[7] In *Muchabaiwa* v *Grab Enterprises (Pvt) Ltd* 1996 (2) ZLR 691 (S), the Supreme Court reaffirmed the caveat subscriptor principle: a party is bound by the document he signs. That principle was relied upon in the applicant's papers and in the prior Freda Rebecca cases. The respondent signed both the employment contract and the lease agreement. He cannot approbate and reprobate. He cannot take the benefit of occupation under the lease for years and only discover its alleged infirmity when the day of reckoning arrives.

[8] The respondent's argument that the applicant cannot evict him because the land was excised, or because the property is now state land, or because title lies elsewhere, is legally misconceived. The applicant's claim is not vindicatory. It is possessory, arising from the lease and from the respondent's loss of the right of occupation. In *Robson* v *Grimm* 1996 (2) ZLR 73 (S), approving *Clark* v *Nourse Mines* Ltd 1910 TS 512, it was made clear that a lessee cannot dispute the lessor's title after having been placed in undisturbed possession. The same position was reaffirmed in *Zuva Petroleum Ltd* v *Chirenje* HH 166/16 and endorsed in *Chibamu* HH 283-25 and *Mataswa* HH 455-25. As was pithily put in *Kalam Singh* v *Germiston Municipality* 1912 TPD 155, it does not lie in the mouth of the lessee to question the title of his landlord. That point alone is sufficient to dispose of the respondent's ownership defence.

[9] The respondent also sought refuge in legitimate expectation. That defence fares no better. *Mataswa* HH 455-25 discussed the doctrine with reference to *Health Professions Council* v *McGown* 1994 (2) ZLR 329 (S), and made the point that a legitimate expectation must rest on a clear promise or regular practice, the claimant must show that he met the stated requirements, and the expectation must be reasonable. Here, there is no agreement of sale in favour of the respondent, no proof of payment toward the purchase price, and no document identifying this respondent as the purchaser of this house. The record in this matter shows none. A vague historical discussion about disposal of some houses to some employees at some point is not a title deed, and it is not a defence to ejectment.

[10] Even on the respondent's own version, the alleged expectation was tied to developments that never matured into a concluded sale in his favour. Hope, however earnestly entertained, is not a legal right. In *Mataswa* HH 455-25 the court held, correctly in my view, that where occupation remained expressly conditional upon employment and regulated by a lease that

terminated with employment, any expectation to retain the premises after dismissal was unreasonable. The same reasoning applies here with full force.

[11] The court put a simple question to counsel for the respondent: if the houses were on sale, to whom was the purchase price to be paid? The answer was that it was to the applicant. That answer was devastating to the respondent's position. It exposed the artificiality of the respondent's resistance. If, on his own argument, the applicant was the entity selling, receiving, and administering the housing arrangement, the contention that it has no right to recover possession from a former employee who entered as its tenant becomes unsustainable. One cannot at once deny the applicant's authority and affirm its capacity to sell the very same property.

[12] Counsel urged that viva voce evidence was necessary. I disagree. Oral evidence is not a ritual to be invoked whenever a litigant has run out of paper defences. Courts sometimes encounter litigants who press forward with a case right up to the courtroom door even when the law has long since turned them away. On occasion, legal practitioners are not wholly innocent in that enterprise. As was observed in *Mataswa* HH 455-25, counsel are not mere echoes of their clients; they are officers of the court and are expected to distinguish arguable points from hopeless ones. That observation was apt there, and it is apt here.

[13] The respondent's continued occupation is therefore unlawful. Once the employment relationship terminated, the lease terminated. Once the lease terminated, the right of occupation evaporated. Nothing placed before me revives it. The respondent has no right, title or lawful basis upon which to remain in the applicant's property. The application must succeed.

Costs

[14] The applicant sought costs on the higher scale. I decline to grant them. The defence is weak and, in truth, untenable. But punitive costs remain an exceptional order. In both *Chibamu* HH 283-25 and *Mataswa* HH 455-25, despite substantially similar defences, the court awarded costs on the ordinary scale. I take the same view here. Ordinary costs will adequately mark the respondent's failure and compensate the applicant without overreaching.

In the result, it is ordered that:

a) The application for eviction be and is hereby granted.
b) The respondent, Davison Murambiwa, together with all those claiming occupation through him, shall vacate the immovable property known as Number 4 Zororo Park, Bindura, within 30 days of the date of this order.
c) In the event that the respondent fails or refuses to comply with paragraph [b] above, the Sheriff of Zimbabwe or his lawful deputy shall be and is hereby authorised to eject the respondent and all those claiming occupation through him from the said property.
d) The respondent shall pay the applicant's costs of suit on the ordinary scale.

MAMBARA J……

ChimukaMafunga, applicant's legal practitioners
Masinire law Chambers, respondent's legal practitioners